

#	Case Name	Tentative
1	All Green Electronics Recycling, LLC vs. Funding Metrics, LLC 2026-01539367	<i>[The court will address with the parties the duplicative case filing, All Green Electronics Recycling, LLC v. Funding Metrics, LLC dba Lendini, Case No. 30-2026-01539489, which is currently assigned to the Honorable Judge Theodore Howard.</i> <i>With respect to Defendant Funding Metrics, LLC's pending demurrer in this case, 01539367, this court has also considered Plaintiff's Opposition to Defendant's demurrer (ROA 22) and Plaintiff's supporting declaration (ROA 20) which were both filed in case 01539489 only. The court has also considered the First Amended Complaint which is the subject of this demurrer but was only filed in case 01539489.]</i> Demurrer to Amended Complaint Defendant Funding Metrics, LLC's demurrer to Plaintiff All Green Electronics Recycling LLC's First Amended Complaint is SUSTAINED. (Code Civ. Proc., §430.10, subd. (e).) Plaintiff shall have 20 days to file a Second Amended Complaint to address the deficiencies outlined below. Defendant argues that Plaintiff's negligence and declaratory relief claims are barred by the two-year statute of limitations provided in Code Civ. Proc. §339, subd. (1). Defendant argues that the FAC discloses that Plaintiff's claim accrued more than 2 years prior to the commencement of this action. Namely, Defendant cites to FAC ¶9, where Plaintiff admits that "between approximately May of 2022 and August of 2025, Lendini withdrew funds totaling \$1,096,952 from its bank account without authorization." Defendant reasons that Plaintiff's cause of action accrued when the first withdrawal was made from Plaintiff's account and that Plaintiff should have suspected wrongdoing once the first withdrawal was made. Plaintiff does not dispute that a 2-year statute of limitations applies to the claims alleged here. Rather, Plaintiff argues that the FAC alleges Plaintiff did not discover the wrongdoing until August 2025, when an unlawful detainer proceeding was commenced against Plaintiff, triggering Plaintiff to conduct an audit of its accounts. Plaintiff relies upon the discovery rule to preserve the timeliness of its claims. To sufficiently plead the applicability of the discovery rule, Plaintiff must allege with specificity "(1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence." (<i>Fox v. Ethicon Endo-Surgery, Inc.</i> (2005) 35 Cal.4th 797, 808.) Plaintiff attempts to invoke the

		discovery rule in the FAC, but the FAC fails to allege sufficient facts with sufficient particularity to warrant application of the discovery rule. Specifically, Plaintiff alleges, in purely conclusory terms, that it could not have discovered Defendant's wrongdoing prior to August 2025 because the transactions were mistaken as being "regular operational expenses and not as repayments for the advanced funds." (FAC ¶29.) Accordingly, the negligence cause of action is subject to demurrer as untimely. Plaintiff's Second Cause of Action is subject to the same statute of limitations as its negligence claim. (See <i>Bank of New York Mellon v. Citibank NA</i> (2017) 8 Cal.App.5th 935, 943-944 ["A claim for declaratory relief is subject to the same statute of limitations as the legal or equitable claim on which it is based."].) Accordingly, Plaintiff's Second Cause of Action is subject to demurrer on the same grounds discussed above. Plaintiff has leave to file a Second Amended Complaint that either alleges specific facts to warrant application of the discovery rule or to otherwise allege a cause of action that is not barred by the statute of limitations. Motion to Strike Portions of Complaint In light of the foregoing ruling on the demurrer, Defendant's Motion to Strike is DENIED as MOOT. <i>Case Management Conference continued to January 15, 2027 at 8:30 a.m. in Department C44.</i> Defendant to give notice.
2	Axiom Heat Treatment LLC vs. Upton 2026-01539877	1. Demurrer to Complaint 2. Motion to Strike Portions Of Complaint 3. Case Management Conference <i>All matters continued to 10/29/26.</i>
3	California Bank of Commerce, N.A. vs. JKO Group, LLC 2026-01540180	Demurrer to Complaint <i>Vacated. See notice filed 7/17/26.</i>